

DEC 11 2024

December 11, 2024

Via Hand Delivery

Sheridan County Planning and Zoning Commission
Chair Wallack and Members, Best, Seeley, Bledsoe and Wellborn
224 South Main St., Ste. 428
Sheridan, WY 82801

Re: Ramaco Resources, Inc., first supplemental submission opposing proposed
September 7, 2023, Acme Special Use District.

Chair Wallack and Commission Members Best, Seeley, Bledsoe and Wellborn:

I write again on behalf of Ramaco Resources, Inc., the corporate entity that controls use and development of the Ramaco Wyoming Coal Co., LLC, a Wyoming limited liability company, lands described generally in the materials Planner Reid has provided for discussion about the September 7, 2023, Acme Special Planning Area workshop on November 19, 2024. Thank you for considering Ramaco's concerns.

Ramaco respectfully reiterates its opposition to the September 7, 2023, draft Proposal ("Proposal" herein) and urges this Commission to vote to end discussion on the formation of any proposed Acme Special Planning Area at this time and pending the 2025-26 update process for the Sheridan County Comprehensive Land Use Plan when this issue can be more carefully vetted and the Plan can be updated to simply remove any future discussion about trying to arbitrarily map out a portion of the lands near the Acme I-90 Interchange for any special zoning treatment.

In addition to the lengthier list and descriptions of Ramaco's specific reasons for opposing the Proposal set out in its November 2024 letter, we offer the following additional observations and thoughts that support ending consideration of the Proposal at all at this time.

1. The Sheridan County Commission ("SCC") has sufficient authority and resources to properly administer zoning of the lands in the general area of the Acme I-90 Interchange without the arbitrary creation of an "Acme Special Planning Area."

The Sheridan County Commission currently possesses sufficient statutory zoning authority to manage the development of the lands in the general area of the Acme I-90 interchange without any need for the creation of an Acme Special Planning Area. The SCC's zoning authority under the Wyoming Statutes at Title 18, Chapter 5, Article 2 have served this area of Sheridan County appropriately for decades without the imposition of any arbitrarily designated "Special Planning Area" overlays. That existing statutory authority set out by the Legislature already mandates the appropriate balancing of allowable County zoning and other legal uses that the SCC does not have

different themes and reasons can be identified for this consensus, the consensus clearly does exist and this Commission should take credit for making sure the Proposal was thoroughly presented and discussed over a nearly two-year time period and then honor the public's clear response and terminate further consideration of the Proposal. Any other course of action at this time will be unlikely to produce any result that would appeal to the SCC and could harm the Commission's credibility with the public.

3. Now that the P&Z and County Planning Staff have solicited generally negative public feedback on the Proposal, ending any efforts to move the Proposal forward are consistent with the idea in the 2020 Sheridan County Comprehensive Plan ("2020 SCCP") that this subject would be discussed.

As stated by the County Planning Staff from the outset, the 2020 SCCP does not and cannot legally mandate the creation of any "Special" zoning area overlays in the Acme I-90 Interchange area or anywhere else in Sheridan County. The Proposal has been presented and vetted and it is not favorably viewed by the public and is, and should be, unlikely to garner SCC support as presented. The completion of that process means that the aspirational Goal 1.5(a) in the 2020 SCCP. This Commission and the County Planning Staff have done their job now fostering that discussion and the Proposal has not proved to be a planning concept that the public or the SCC want or are likely to support. To the extent that the conceptual idea of some sort of Acme Special Planning Area actually needs any further consideration, that can be dealt with in the upcoming five-year renewal discussions to update the 2020 SCCP that will be taking place in later 2025 and into 2026. If public sentiment on this idea constitutes to be negative to the concepts set out in the Proposal, then the Acme Special Planning Area issue can simply be removed from the next update of the Plan entirely.

4. Terminating discussion on the Proposal now correctly avoids further threat to landowners of any sort of implied takings of existing rights or loss of private property owner's investments and planning for their property consistent with existing zoning laws that have not been fully developed yet.

The Proposal likely was flawed in its conception from the outset because it was inherently arbitrary in the way it tried to single out just one relatively small area for additional County zoning restrictions at a time when such additional zoning regulation clearly is not needed. By proposing a "Special" extra zoning area overlay in that manner, the 2020 SCCP and County Planning effectively forced private landowners in the Acme I-90 Interchange Area to assert and seek to protect their existing property, zoning rights and, in some cases, expensive efforts to plan to further develop their lands even though no specific issue actually exists to otherwise warrant any further County zoning activity. Terminating discussion of the Proposal so that it is not proposed by this Commission to the SCC after it is clear none of the private landowners in the area want it to proceed, will send the message to private landowners that the County respects their private property rights - as the 2020 SCCP expressly states it should.

any jurisdiction to attempt to regulate.¹ The SCC should never restrict its existing authority under these statutes in advance and without any specific development having been proposed so that the facts and circumstances of any future zoning adjustment are not hypothetical but that may ultimately be determined by the SCC to be warranted. This Commission should refrain from proposing that the SCC ever do so.

2. The most recent comprehensive public feedback concerning the Proposal from the recent P&Z workshop, along with considerable prior public input, indicates that the landowners in this area and other stakeholders generally agree that the Proposal is poorly conceived and should not proceed at this time.

The public comments available now from the November 2024 P&Z workshop on the Proposal considered along with other recent written comments and other public feedback all indicate that there is public consensus at this time to end discussion about the Proposal. While

¹ See W.S. § 18-5-201 (2024) and note the considerable limits on County level zoning authority that the statute sets out:

§ 18-5-201 Authority vested in board of county commissioners; inapplicability of chapter to incorporated cities and towns; mineral resources; private schools.

(a) To promote the public health, safety, morals and general welfare of the county, each board of county commissioners may regulate and restrict the location and use of buildings and structures and the use, condition of use or occupancy of lands for residence, recreation, agriculture, industry, commerce, public use and other purposes in the unincorporated area of the county. However, nothing in W.S. 18-5-201 through 18-5-208 shall be construed to contravene any zoning authority of any incorporated city or town. No zoning resolution or plan shall prevent any use or occupancy reasonably necessary to the extraction or production of the mineral resources in or under any lands subject thereto. No board of county commissioners shall require that a land use or physical development be consistent with a local land use plan unless the applicable provisions of the local land use plan have been incorporated into the local zoning regulations. Nothing in W.S. 18-5-201 through 18-5-208 shall be construed to allow any board of county commissioners, through the establishment of minimum lot size requirements or otherwise, to prevent residential or agricultural uses authorized for land divisions that are exempt from subdivision requirements pursuant to W.S. 18-5-303(a)(i). No zoning resolution or plan shall regulate and restrict the location and use of buildings and structures and the use, condition of use or occupancy of lands for the use of a private school as defined in W.S. 21-4-101(a)(iii) in any manner different from a public school, provided that the private school:

(i) Is certified by the professional engineer or architect of record for the private school as being substantially similar to school facility commission guidelines for education buildings and siting and is designed to be constructed with appropriate materials, means and methods;

(ii) Has capacity for fifty (50) students or more; and

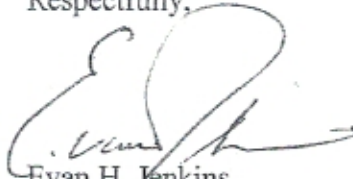
(iii) Is owned and operated by a not for profit entity.

(Emphasis added; see also River Springs Ltd. Liability Co. v. Board of County Comm'rs, 899 P.2d 1329 (Wyo. 1995)).

For these reasons and adopting Ramaco's prior submissions concerning the Proposal, Ramaco respectfully requests that this Commission vote to deny the Proposal outright and simply terminate further consideration or discussion about it at this time.

Thank you for allowing Ramaco to provide further comment on this issue and for seriously considering our concerns.

Respectfully,



Evan H. Jenkins
General Counsel Ramaco Resources, Inc.

EHJ/bnd

Enclosures - Appendices

Cc: Sheridan County Planning Staff, R. W. Atkins, A. Wendtland (WWLLP), Jeff Baron, P.E. (WWC); Sheridan County Commission